

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

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REGINALD BOSWELL,

Plaintiff,

- against -

**THE CITY OF NEW YORK,
SGT. AUGUSTINE RODRIGUEZ,
P.O. JULIO JIMINEZ,
P.O. COLLAZO,
P.O. VANESSA MATEO,
P.O. ERIKA ESPAILLAT,
P.O. DANIEL O'CONNELL,
& DET. PETER CASTRO,**

Defendants.

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AMENDED COMPLAINT

10 CV 3712

PLAINTIFF DEMANDS
A TRIAL BY JURY

Plaintiff, by his attorneys, GIORDANO LAW OFFICES, LLC, complaining of Defendants, respectfully allege:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for an incident of police brutality and deprivation of protected rights which transpired on or about February 27, 2009, when law enforcement officers employed by THE CITY OF NEW YORK DEPARTMENT POLICE DEPARTMENT used excessive force, assaulted, wrongfully detained, falsely arrested and falsely imprisoned Plaintiff REGINALD BOSWELL and further maliciously prosecuted him in New York County, New York.

2. On February 27, 2009, at approximately 3:30 p.m. at West 115th Street, New York, New York. Plaintiff entered the building thereat to visit his father, who resides there.

3. Upon entering the lobby, Plaintiff was immediately stopped by defendants who questioned Plaintiff as to why he was in the building and demanded he produce identification. Plaintiff provided his identification and explained to defendants that he was authorized to be in

the building because he was visiting his father. However, Defendants continued to harass Plaintiff and refused to allow him up the stairs to the second floor where his father lived. Defendants had no reasonable justification to stop and continue to detain the Plaintiff.

4. After Plaintiff had provided his identification, Defendants SGT. AUGUSTINE RODRIGUEZ, P.O. JULIO JIMINEZ, P.O. COLLAZO, P.O. VANESSA MATEO, P.O. ERIKA ESPAILLAT, P.O. DANIEL O'CONNELL & DET. PETER CASTRO, began to close in on and surround him. Plaintiff, while holding a wallet in one hand, a driver's license in the other, continued to explain his purpose for being in the building and continued to make repeated requests for officers to allow him some room, but Defendants continued to close in on the Plaintiff.

5. In the midst of being questioned, Defendant P.O. JOSE COLLAZO came up to the right side of Plaintiff and placed him in a tight chokehold. Defendants then threw Plaintiff onto the ground and handcuffed him.

6. While on the floor, Defendants Police Officers SGT. AUGUSTINE RODRIGUEZ P.O. JULIO JIMINEZ, P.O. VANESSA MATEO, P.O. ERIKA ESPAILLAT, P.O. DANIEL O'CONNELL & DET. PETER CASTRO, physically assaulted and battered Plaintiff. Defendants beat, punched and kicked Plaintiff in his back, kicked his groin and hit his face.

7. Plaintiff was wrongly imprisoned for several days causing Plaintiff physical and emotional distress, humiliation and embarrassment.

8. Prior to the commencement of this action, and within ninety days after the instant claim arose, Plaintiff caused a Notice of Claim in writing to be served upon the Defendant THE CITY OF NEW YORK, by delivering to and leaving the same with the New York City Comptroller's Office, in like manner as the service of a summons in the District Court, which

said Notice of Claim set forth the name and post office address of the Plaintiff and his attorney, the nature of, time when, place where, and manner in which the claims arose, and the items of damage and/or injuries claimed, or that might have been sustained, so far as it was practicable. Over thirty days have elapsed since the service of such Notice of Claim and the THE CITY OF NEW YORK has failed to settle or adjust this matter.

THE PARTIES

9. At all relevant times, Plaintiff is and was a resident of New York County, New York.

10. At all times relevant hereto, Defendants SGT. AUGUSTINE RODRIGUEZ, P.O. JOSE COLLAZO, P.O. JULIO JIMINEZ, P.O. VANESSA MATEO, P.O. ERIKA ESPAILLAT, P.O. DANIEL O'CONNELL & DET. PETER CASTRO, acted in their official capacities, and were employees, agents, or servants of the Defendant THE CITY OF NEW YORK, acting under color of state law, within the meaning of 42 U.S.C. §1983 *et. seq.*

11. Defendant THE CITY OF NEW YORK was and is a municipal corporation organized and existing under and pursuant to the laws of the State of New York. At all relevant times, Defendant THE CITY OF NEW YORK acted through its employees, agents and/or servants, including the individually named Defendants herein, who at all relevant times acted within the course and scope of their employment.

AS AND FOR A FIRST CLAIM PURSUANT TO 42 U.S.C. §1983 BY PLAINTIFF
AGAINST DEFENDANTS SGT. AUGUSTINE RODRIGUEZ, P.O. JOSE COLLAZO,
P.O. JULIO JIMINEZ, P.O. VANESSA MATEO, P.O. ERIKA ESPAILLAT,
P.O. DANIEL O'CONNELL & DET. PETER CASTRO

12. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

13. On or about February 27, 2009, Defendants SGT. AUGUSTINE RODRIGUEZ, P.O. JOSE COLLAZO, P.O. JULIO JIMINEZ, P.O. VANESSA MATEO, P.O. ERIKA ESPAILLAT, P.O. DANIEL O'CONNELL & DET. PETER CASTRO.

14. acting intentionally, recklessly and/or with a deliberate indifference to the rights, life and liberty of Plaintiff, assaulted, battered and caused physical and mental injuries to Plaintiff.

15. As a result of the foregoing, Defendants, acting under color of state law, violated 42 U.S.C. §1983 *et. seq*, and deprived Plaintiff of rights secured by the Constitution and laws of the United States and the State of New York including those rights protected by the Fourth and Fourteenth Amendments to the U.S. Constitution, their right not to be deprived of life, liberty and property without due process of law, and other rights, privileges and immunities guaranteed by the laws and Constitutions of the United States and the State of New York.

16. As a result of the foregoing, Plaintiff was caused to suffer bodily injury, loss of liberty, substantial physical, emotional, mental and psychological pain, and was otherwise injured.

AS AND FOR A SECOND CLAIM PURSUANT TO 42 U.S.C. §1983 BY PLAINTIFF
AGAINST DEFENDANTS SGT. AUGUSTINE RODRIGUEZ, P.O. JOSE COLLAZO,
P.O. JULIO JIMINEZ, P.O. VANESSA MATEO, P.O. ERIKA ESPAILLAT,
P.O. DANIEL O'CONNELL & DET. PETER CASTRO

17. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

18. On or about February 27, 2009, Defendants, acting without probable cause, intentionally, without justification and with deliberate indifference to the rights, life and liberty of Plaintiff, falsely arrested and maliciously prosecuted Plaintiff.

19. As a result of the foregoing, Defendants, acting under color of state law, violated 42 U.S.C. §1983 *et. seq*, and deprived Plaintiff of rights secured by the Constitution and laws of the United States including those rights protected by the Fourth and Fourteenth Amendments, their right not to be deprived of life, liberty and property without due process of law, and other rights, privileges and immunities guaranteed by the laws and Constitutions of the United States and the State of New York.

20. As a result of the foregoing, Plaintiff was caused to suffer bodily harm, loss of liberty and life, substantial physical, emotional and psychological pain, and was otherwise injured.

**AS AND FOR A THIRD A MONELL CLAIM PURSUANT TO 42 U.S.C. § 1983 BY
PLAINTIFF AGAINST THE CITY OF NEW YORK**

21. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

22. The aforesaid conduct of the individual Defendants was occasioned and conducted pursuant to, and was the result of, the unconstitutional customs, usages, practices and/or policies of Defendant THE CITY OF NEW YORK, including the policy and practice of unlawfully stopping and arresting lawful invitees for trespassing in city buildings, a failure to train, supervise, and discipline the individual Defendants herein.

23. As a result of the foregoing, Defendants, in violation of 42 U.S.C. '1983 thereby deprived Plaintiff of rights secured by the Constitution and laws of the United States, including

the Fourth and Fourteenth Amendments to the U.S. Constitution and laws of the State of New York.

24. As a result of the foregoing, Plaintiff was caused to suffer bodily harm, loss of liberty and life, substantial physical, emotional, mental and psychological pain, and was otherwise injured.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Defendants:

- a. Compensatory damages;
- b. Punitive damages against SGT. AUGUSTINE RODRIGUEZ,
P.O. JOSE COLLAZO, P.O. JULIO JIMINEZ, P.O. VANESSA
MATEO, P.O. ERIKA ESPAILLAT, P.O. DANIEL O'CONNELL &
DET. PETER CASTRO;
- c. The convening and empaneling of a jury to consider the merits of the
claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and
equitable.

Dated: September 21, 2010
New York, New York

Yours, etc.,



By: Carmen S. Giordano
GIORDANO LAW OFFICES, LLC
226 Lenox Ave
New York, NY 10027

UNITED STATES DISTRICT COURT

SOUTHERN DISTRICT OF NEW YORK

REGINALD BOSWELL,

X

Plaintiff,

V.

THE CITY OF NEW YORK &
SGT. AUGUSTINE RODRIGUEZ,
P.O. JOSE COLLAZO,
P.O. JULIO JIMINEZ,
P.O. VANESSA MATEO,
P.O. ERIKA ESPAILLAT,
P.O. DANIEL O'CONNELL,

Defendants.

X

AMENDED SUMMONS IN A
CIVIL ACTION

Index No: 10 CV 3712

TO:
SGT. AUGUSTINE RODRIGUEZ Shield #1452,
P.O. JOSE COLLAZO Shield #23740,
P.O. JULIO JIMINEZ Shield #26296,
P.O. VANESSA MATEO Shield #18134,
P.O. ERIKA ESPAILLAT Shield #22423,
PSA 5
221 East 123rd Street
New York, NY 10035

P.O. DANIEL O'CONNELL Shield #8496
PSA 7
737 Melrose Avenue
Bronx, NY 10451

DET. PETER CASTRO
Shield 6215
50th Det. Squad, 3450
Kingsbridge Ave.
Bronx, NY 10463

YOU ARE HEREBY SUMMONED and required to file with the Clerk of this Court and

serve upon PLAINTIFF'S ATTORNEY

GIORDANO LAW OFFICES, LLC

226 Lenox Ave
New York, NY 10027
(212) 406-9466

an answer to the complaint which is herewith served upon you, within 21 days after service of this summons upon you, exclusive of the day of service. If you fail to do so, judgment by default will be taken against you for the relief demanded in the complaint.

CLERK

DATE

BY DEPUTY CLERK

RETURN OF SERVICE

Service of the Summons and Complaint was made by me	DATE
NAME OF SERVER	TITLE
Check one box below to indicate appropriate method of service	
Served personally upon the defendant. Place where served: _____ Left copies thereof at the defendant's dwelling house or usual place of abode with a person of suitable age and discretion then residing therein. Name of person with whom the summons and complaint were left: _____ Returned unexecuted: _____ Other (specify): _____	

STATEMENT OF SERVICE FEES

<i>TRAVEL</i>	<i>SERVICES</i>	<i>TOTAL</i>
<i>DECLARATION OF SERVER</i>		
<i>I declare under penalty of perjury under the laws of the United States of America that the foregoing information contained in the Return of Service and Statement of Service Fees is true and correct.</i>		
<i>Executed on</i> _____		
<i>Date</i>	<i>Signature of Server</i>	
<i>Address of Server</i>		